Critical Refusal, Slowness, and Openness: Possibilities and Challenges in Community-Oriented Digital Archival Initiatives

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Introduction

In digital humanities, openness has become a default expectation, even an ethical imperative (Arbuckle / Siemens 2023; Arthur / Hearn 2024; Fitzpatrick 2020; Spiro 2012). Open access scholarship has long been touted as providing a "public good" by "removing access barriers," and digital humanists have readily embraced these arguments (“Read the Declaration” 2002). This default brings with it both the possibility for community empowerment through knowledge distribution and the challenges of replicating power imbalances, social oppression and repression, and unintended consequences. Critics of openness have documented such challenges from a variety of perspectives. Drawing on these critiques while also demonstrating the possibilities, I offer two case studies grounded in archival and community-oriented work that demonstrate how critical refusal and slow scholarship, working alongside indigenous data sovereignty principles, offer a significant shift in approaches to openness that can account for both possibility and challenges.

Critiques of Openness

The 2001 Budapest Open Access Initiative frames their declaration for open scholarship in terms of performing a "public good" by "removing access barriers" (“Read the Declaration” 2002). The FAIR open data principles define "open" as findable, accessible, interoperable, and reusable (“FAIR Principles” 2016). The Horizon 2020 Open Research Data Pilot (ORD) clarified that research data should be "as open as possible, as closed as necessary," which has come to be understood as aiming to continue the acceleration of research while protecting the "privacy of the subjects" in health science contexts (Landi et al. 2020: 47). In 2023, the Barcelona Declaration on Open Research Information proclaimed that openness should be the norm, making the "exception for information for which openness would be inappropriate" and citing the Horizon 2020 ORD.

Perhaps these small steps away from complete openness are in response to critiques that cite scholarship engaging Indigenous and minoritized communities and that highlight the ways in which historic and ongoing power imbalances can be replicated through openness. Perhaps they also recognize that open and closed are not a dichotomy but an interdependent relationship. As Deb Verhoven writes about "clopen" and "clopening," openness and closedness can be understood as "contingent processes" and, in the the context of open scholarship, "*create conditions* for openness" (emphasis in original) (Verhoven 2022). These conditions offer an opportunity not to make information open but for researchers to reframe their own mindsets toward new possibilities for research (Verhoven 2022).

Being open in this way is critical if digital humanists hope to recognize and address how power works, and can be disrupted, through scholarship. Amy Earhart emphasizes the needs to recenter human experience in digital, especially data-driven, scholarship and to reconsider when and how we partner with marginalized communities (Earhart 2018: 371-72). David Gaertner carries Verhoven and Earhart's thinking forward in his proposal of a "closed methodology" that prioritizes Indigenous sovereignty, as defined by scholar and activist Vine Deloria, Jr., (Standing Rock Sioux), over extractive, decontextualizing openness as a "public good" (Gaertner 2023: 50). Gaertner's closed methodology, like Verhoven's conditions for openness, are about researchers ceding authority and control in order to rebalance power in research practices (Gaertner 2023: 69).

In short, these scholars' critiques of openness ask two questions: whose are data and scholarship to make open? And to whom are data and scholarship open? Recent shifts in definitions of FAIR, especially in relation to the "A" for "accessible," indicate some reconsideration around both of these questions. Yet FAIR remains focused on "characteristics of data that will facilitate increased data sharing among entities while ignoring power differentials and historical contexts" (Research Data Alliance International Indigenous Data Sovereignty Interest Group 2019: 1). The Global Indigenous Data Alliance's CARE principles, meanwhile, prioritize the specific communities re-

presented in data and scholarship (who may also be members of a project's audience): Collective Benefit, Authority to Control, Responsibility, and Ethics. CARE, clopenness, and closed methodologies all offer opportunities to realign scholarship with values that center human experience.

Critical Refusal and Slowness

Yet, in academic contexts that value data-centered openness, how do we enact human-centered values? Critical refusal and slow scholarship, or an "ethics of pace," offer two potential approaches. Critical refusal is "an informed practice of investigating power differences in order to generate more just and equitable alternatives to the status quo" (Garcia et al. 2022: 315:1). It "can be the act of saying 'no,' the decision to declare 'enough,' or a deliberate form of action or inaction" (Garcia et al. 2022: 315:2). The *Feminist Data Manifest-No* provides a concrete framework through which to enact critical refusal (Cifor et al. 2019). The 32 refusals in the manifesto focus on the various ways that power impacts how data are gathered, used, and stored, and how industries and infrastructures shape data practices.

Slow scholarship, meanwhile, is a response to capitalist values of productivity and efficiency that have seeped into scholarship. Maggie Berg and Barbara K. Seeber write that "Slow Professors advocate deliberation over acceleration. We need time to think, and so do our students" (Berg / Seeber 2016: xviii). Kimberly Christen and Jane Anderson add that “Slowing down is about focusing differently, listening carefully, and acting ethically. It opens the possibility of seeing the intricate web of relationships formed and forged through attention to collaborative curation processes that do not default to normative structures of attribution, access, or scale”(Christen / Anderson 2019: 90). Moya Bailey describes this slowing down as an “ethics of pace” that shifts the focus of collaborative research away from outcomes and toward relationships (Bailey 2021: 295).

In the following case studies, I present critical refusal and slow scholarship as means of resisting harms that openness can perpetuate in one example, while, in the second example, embracing openness as resistance.

“No” as Critical Refusal: The Hungry River Collective

Beginning in 2018, a Collective of people inside and outside academia began gathering around a difficult, precarious archive of psychiatric hospital records, photographs, and journals from a formerly segregated asylum for African Americans in eastern North Carolina. We gathered to seek ways to secure the archive's future in honor and remembrance of the people documented and for the benefit of community members with familial and experiential ties. Our early work in part focused on developing a database that would contextualize and make publicly available the archive's contents. Our aim in embracing openness was to resist long-standing political and social leanings toward unaccountability and erasure.

However, as our Collective grew, and as we waded deeper into our work, we began to consciously frame our work around Black and intersectional feminist theory and ethics of care (McGruder et al. forthcoming). Through these frameworks and through our engagement with community members, we witnessed how injustice and oppression could be replicated through digital openness. In response, we began to enact what we have termed our "sacred no," a form of critical refusal, in alignment with many of the *Feminist Data Manifest-No* principles, and a call to slowness that checks haste and requires the wisdom of multiple perspectives. While our work is urgent--trauma needs to be healed and community and material memory are in danger of being lost--our critical refusal and slowness aim to ensure that eventual openness does not perpetuate the white supremacist, patriarchal, capitalist values that created the archive in the first place.

“Yes” as Critical Refusal: Blue Devil Herbarium

Critical refusal is not simply saying "no," as Garcia et al., citing Ruha Benjamin, emphasize. It can be a "talking back," a "decision to share or withhold data," a "declination," or a "reorientation" (Garcia et al. 2022: 315:2-3.). Sometimes, critical refusal is saying "Yes." In February 2024, Duke University announced its intention to divest from stewardship of its herbarium, the eighth largest in the United States (Edwards et al. 2024: 826). The announcement initiated responses both on and off campus and across scientific fields. On campus, many community members asked for the first time, "we have an herbarium?" and "what is a herbarium?" Around the world, scientists called for a reversal of the decision, citing the important climate data, not to mention cultural and natural heritage and histories of colonialism, that the herbarium houses (Pryer 2024).

In this moment, an opportunity emerged to create an open space for sharing knowledge from the herbarium while it is still at Duke. A group of faculty, staff, students, and alumni came together to launch an Instagram account through which we share knowledge and stories from the herbarium's collection, its space, and its people. While in a moment of urgency, we initiated a period of slowness to scaffold our project. Following the 21st principle of the *Feminist Data Manifest-No* , we aim to create change not through engaging with an administration that has remained impassive since its decision but through community education and connection. The *Manifest-No* as a whole offers an example of "refusal as both a process of careful judgement and an in/action that occurs at important junctures" (Garcia 2022: 315:3). The Blue Devil Herbarium was created through the act of critically refusing to let the herbarium as it currently exists be forgotten and through slow, careful judgement that built the foundation for a project that is making knowledge openly available in ways that it has not be been before.

Conclusion

The two case studies described have more in common than their archival materials might suggest. Both archives were created by powerful forces of colonialism and white supremacy, yet both also document significant aspects of human and natural experiences. The projects created around them, meanwhile, have applied critical refusal and slowness in meaningfully different ways. While the Hungry River Collective's work requires a refusal of openness, the Blue Devil Herbarium's refusal of erasure requires an inclination toward openness. Both projects prioritize people, nature, and context, demonstrating the possibilities and challenges that values-driven approaches to openness can reveal.

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